

**El Paso County  
Delia Briones  
County Clerk**

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Instrument Number: 00000000091

L.Mendez

Recorded On: 5/12/2026 11:52:53 AM

Number of Pages: 1

NF Pages: 1

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\*\*\*\*\*THIS PAGE IS PART OF THE INSTRUMENT\*\*\*\*\*

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY because of color or race is invalid and unenforceable under federal law.

**File Information**

|                 |             |
|-----------------|-------------|
| Document Number | 00000000091 |
| Receipt Number  | 1985764     |
| Fees            | \$12.00     |

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State of Texas  
COUNTY OF EL PASO

I hereby certify that this instrument was FILED in the File Number sequence on the date/time printed hereon, and was duly RECORDED in the Official Record of El Paso County, Texas.

Delia Briones  
County Clerk  
El Paso County, TX

**Appointment of Substitute Trustee and Notice of Substitute Trustee's Sale**

**THIS INSTRUMENT APPOINTS THE SUBSTITUTE TRUSTEE(S) IDENTIFIED TO SELL THE PROPERTY DESCRIBED IN THE SECURITY INSTRUMENT IDENTIFIED IN THIS NOTICE OF SALE. THE PERSON SIGNING THIS NOTICE IS THE ATTORNEY OR AUTHORIZED AGENT OF THE MORTGAGEE OR MORTGAGE SERVICER.**

**ASSERT AND PROTECT YOUR RIGHTS AS A MEMBER OF THE ARMED FORCES OF THE UNITED STATES. IF YOU ARE OR YOUR SPOUSE IS SERVING ON ACTIVE MILITARY DUTY, INCLUDING ACTIVE MILITARY DUTY AS A MEMBER OF THE TEXAS NATIONAL GUARD OR THE NATIONAL GUARD OF ANOTHER STATE OR AS A MEMBER OF A RESERVE COMPONENT OF THE ARMED FORCES OF THE UNITED STATES, PLEASE SEND WRITTEN NOTICE OF THE ACTIVE DUTY MILITARY SERVICE TO THE SENDER OF THIS NOTICE IMMEDIATELY.**

|                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
|-------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Substitute Trustee(s):        | Beverly Mitrising                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| Substitute Trustee's Address: | 10406 Rockley Road, Houston, Texas 77099                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| Mortgagee:                    | ELPEDG, LLC, a Texas limited liability company                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| Mortgagee's Address:          | 712 Wilcrest Dr., # 3038, Houston, Texas 77042                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| Note:                         | Promissory Note dated January 4, 2023, by JMK5 Sunrise Village LLC payable to Western Heritage Bank, as assigned to ELPEDG, LLC by Nusenda Federal Credit Union, as successor by merger to Western Heritage Bank.                                                                                                                                                                                                                                                                                                            |
| Deed of Trust:                | Deed of Trust dated January 4, 2023, by JMK5 Sunrise Village LLC for the benefit of Western Heritage Bank, recorded in the official records of El Paso County, Texas, on January 9, 2023, Document No. 20230001782;<br><br>As assigned to ELPEDG, LLC by Nusenda Federal Credit Union, as successor by merger to Western Heritage Bank by that certain Assignment and Transfer of Note and Lien dated April 3, 2026, recorded in the official records of El Paso County, Texas, on April 30, 2026, Document No. 20260036272. |
| Property to be Sold:          | The land situated in El Paso County, Texas, more particularly described on <u>Exhibit 1</u> attached hereto                                                                                                                                                                                                                                                                                                                                                                                                                  |



and incorporated herein, save and except the property described in Exhibits A, B and C attached hereto and incorporated herein, together with all improvements, fixtures, and appurtenances located thereon or appertaining thereto, and all personal property secured by the security agreement included in the Deed of Trust

Date of Sale (first Tuesday of month): June 2, 2026

Time of Sale: 10:00 a.m. or not later than three hours thereafter

Place of Sale: At the El Paso County Coliseum, 4100 E Paisano Dr., El Paso, TX 79905, or if the preceding area is no longer the designated area, at the area most recently designated by the County Commissioner's Court

Default has occurred in the payment of the indebtedness evidenced by the Note, and the same now being fully due, the Mortgagee has appointed the Substitute Trustee(s) named herein as trustee(s) in place of the original trustee and has requested the Substitute Trustee(s) named herein to sell the Property to be Sold in accordance with the terms of the Deed of Trust.

Accordingly, notice is given that on the Date of Sale, Substitute Trustee will offer the Property to be Sold for sale at public auction at the Place of Sale, to the highest bidder for cash (except that Mortgagee may bid a credit against the indebtedness secured by the Deed of Trust), "AS IS, WHERE IS," without any representation or warranty, express or implied. THERE WILL BE NO WARRANTY RELATED TO TITLE, POSSESSION, QUIET ENJOYMENT, OR THE LIKE FOR THE PERSONAL PROPERTY IN THIS DISPOSITION.

This sale will be conducted subject to any prior matters of record affecting the Property to be Sold, if any, if such matters were recorded prior to the date of recordation of the Deed of Trust and were not subordinated to the Deed of Trust. Prospective bidders are urged to examine the applicable property records to determine the nature and extent of such matters, if any. The Substitute Trustee reserves the right to set further reasonable conditions for conducting the sale, which conditions shall be announced before bidding is opened for the first sale of the day held by the Substitute Trustee. If the sale is set aside for any reason, the Purchaser at the sale shall be entitled only to a return of the funds paid. The Purchaser shall have no further recourse against the Grantor, Mortgagee, or the Substitute Trustee.

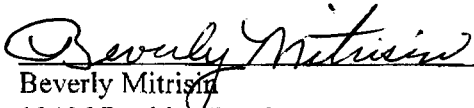
If Mortgagee decides to postpone, withdraw, or reschedule the sale for another day, the Substitute Trustee need not appear on the Date of Sale at the Place of Sale to announce the postponement, withdrawal or rescheduling; instead, notice of any postponed or rescheduled sale will be posted, filed and noticed in accordance with the requirements under the Deed of Trust and the Texas Property Code. Such posting, filing and noticing may occur after the Date of Sale.

**ATTORNEY FOR MORTGAGEE:**

  
Daniel J. Ferretti  
Baker, Donelson, Bearman, Caldwell &  
Berkowitz, PC  
1301 McKinney Street, Suite 3700  
Houston, Texas 77010

Dated: May 11, 2026

**SUBSTITUTE TRUSTEE:**

  
Beverly Mitrishin  
10406 Rockley Road  
Houston, Texas 77099

Dated: May 12, 2026

**CERTIFICATE OF POSTING**

My name is \_\_\_\_\_, and my address is \_\_\_\_\_.

I declare under penalty of perjury that on \_\_\_\_\_, I caused to be posted at the El Paso County Courthouse (or other designated place) this notice of sale.

Signed: \_\_\_\_\_

Date: \_\_\_\_\_

**Exhibit "1"**

PARCEL 1: Block 13, MOUNTAIN VIEW ADDITION REPLAT, an addition to the City of El Paso, El Paso County, Texas, according to the plat thereof on file in Volume 2, Page 39, Real Property Records, El Paso County, Texas; SAVE AND EXCEPT that certain 0.354 acre portion thereof, conveyed to the City of El Paso in that certain Deed of Dedication dated June 26, 1973, filed June 27, 1973, in Volume 461, Page 78, Real Property Records, El Paso County, Texas being more particularly described by metes and bounds in Exhibit "A" attached hereto and made a part hereof, and SAVE AND EXCEPT that certain 1.3183 acre portion thereof, conveyed to CG ELP Dyer LLC in that certain Special Warranty Deed dated April 30, 2025, filed May 8, 2025, under Clerk's File No. 20250036659, Real Property Records, El Paso County, Texas being more particularly described by metes and bounds in Exhibit "B" attached hereto and made a part hereof.

PARCEL 2: Lot 300, Block 14, MOUNTAIN VIEW ADDITION REPLAT, an addition to the City of El Paso, El Paso County, Texas, according to the plat thereof on file in Volume 2, Page 39, Real Property Records, El Paso County, Texas; SAVE AND EXCEPT a 0.155 acre portion thereof, a 0.00197 acre portion thereof, and a 0.3913 acre portion thereof, and said SAVE AND EXCEPT portions being more particularly described by metes and bounds in Exhibit "C" attached hereto and made a part hereof.

PARCEL 3: Lot 313, Block 15, MOUNTAIN VIEW ADDITION REPLAT, an addition to the City of El Paso, El Paso County, Texas, according to the plat thereof on file in Volume 2, Page 39, Real Property Records, El Paso County, Texas.

## **EXHIBIT "A"**

### **(SAVE AND EXCEPT PORTION)**

Legal description of a parcel of land, being a portion of Block 13, Mountain View Addition, belonging to Sunrise Center, Inc., to be acquired by the City of El Paso, El Paso County, Texas, for additional right of way purposes and being more particularly described as follows:

Beginning at a corner, which is the true point of beginning for the land hereby conveyed, and which same point is the intersection of the easterly right of way line of U. S. Highway 54 and the northerly right of way line of Tetons Drive;

Thence South  $60^{\circ} 34' 00''$  East along the common boundary line of Tetons Drive and southerly line of said Block 13, a distance of one hundred ninety-eight and seventy-four hundredths (198. 74) feet to a point of curve;

Thence along the arc of a curve to the left, a distance of twenty-four and eighty-one hundredths (24. 81) feet to a point, said curve having a central angle of  $2^{\circ} 46' 26''$ , a radius of five hundred twelve and forty-nine hundredths (512. 49) feet, and a chord bearing South  $61^{\circ} 57' 13''$  East, a distance of twenty-four and eighty-one hundredths (24. 81) feet;

Thence North  $26^{\circ} 39' 34''$  East, a distance of five and fifty-hundredths (5. 50) feet to a point;

Thence along the arc of a curve to the right a distance of twenty-four and fifty-four hundredths (24. 54) feet to a point of tangency. Said curve having a central angle of  $2^{\circ} 46' 26''$  a radius of five hundred six and ninety-nine hundredths (506. 99) feet, and a chord bearing North  $61^{\circ} 57' 13''$  West, a distance of twenty-four and fifty-four hundredths (24. 54) feet;

Thence North  $60^{\circ} 34' 00''$  West, a distance of one hundred seventy-three and seventy-four hundredths (173. 74) feet to a point of curve;

Thence along the arc of a curve to the right a distance of thirty-nine and twenty-s even hundredths (39. 27) feet, to a point of tangency on the boundary common to the easterly right of way of U. S. Highway 54 and the westerly boundary of Block 13, said curve having a central angle of  $90^{\circ} 00' 00''$ , a radius of twenty-five and no hundredths (25. 00) feet, and a chord bearing North  $15^{\circ} 34' 00''$  West, a distance of thirty-five and thirty-six hundredths (35. 36) feet;

Thence South  $29^{\circ} 26' 00''$  West, along said common boundary of the easterly right of way of u. S. Highway 54 and Block 13, a distance of thirty and fifty hundredths (30. 50) feet to the true point of beginning; containing 0.354 acres of land, more or less.

**EXHIBIT "B"**

**(SAVE AND EXCEPT PORTION)**

A PORTION OF BLOCK 13, MOUNTAIN VIEW PREPLAT, AN ADDITION TO THE CITY OF EL PASO, EL PASO COUNTY, TEXAS ACCORDING TO THE PLAT OR MAP THEREOF RECORDED IN VOLUME 2, PAGE 39, OFFICIAL RECORDS, EL PASO COUNTY, TEXAS.

COMMENCING AT A TEXAS D.O.T. BRASS CAP WITH PUNCH LYING ON THE CENTERLINE INTERSECTION OF GATEWAY NORTH AND HERCULES DRIVE; THENCE, NORTH 50°11'00" EAST, A WAY FROM SAID BRASS CAP, A DISTANCE OF 1,516.06 FEET TO A POINT FOR BOUNDARY CORNER LYING ON THE SOUTHEASTERLY RIGHT-OF-WAY LINE OF DYER STREET (A 100' WIDE RIGHT-OF-WAY), SAID POINT BEING THE TRUE POINT OF BEGINNING OF THIS BOUNDARY DESCRIPTION.

THENCE, NORTH 29°26'00" EAST, WITH SAID RIGHT-OF-WAY LINE, A DISTANCE OF 256.38 FEET TO A POINT FOR A BOUNDARY CORNER.

THENCE, NORTH 88°51'29" EAST, AWAY FROM SAID RIGHT-OF-WAY, A DISTANCE OF 120.97 FEET TO THE POINT FOR A BOUNDARY CORNER;

THENCE, SOUTH 01°12'16" EAST, A DISTANCE OF 263.01 FEET TO A POINT FOR A BOUNDARY CORNER;

THENCE, SOUTH 28°04'39" WEST, A DISTANCE OF 89.95 FEET TO A POINT FOR A BOUNDARY CORNER AND A POINT FOR A CURVE LYING ON THE NORTHERLY RIGHT-OF-WAY LINE OF TETONS DRIVE.

THENCE, 41.62 FEET, WITH SAID RIGHT-OF-WAY LINE AND ALONG THE ARC OF A CURVE TO THE RIGHT, HAVING A RADIUS OF 512.49 FEET, A CENTRAL ANGLE OF 04°39'10" AND A CHORD BEARING NORTH 62°53'35" WEST, A DISTANCE OF 41.61 FEET TO A POINT FOR A BOUNDARY CORNER.

THENCE, NORTH 60°34'00" WEST, CONTINUING WITH THE RIGHT-OF-WAY LINE, A DISTANCE OF 198.74 FEET BACK TO THE TRUE POINT OF BEGINNING OF THIS BOUNDARY DESCRIPTION.

SAID PARCEL OF LAND CONTAINING 57,426.54 SQUARE FEET (1.3183 ACRES) OF LAND MORE OR LESS.

## EXHIBIT "C"

### (SAVE AND EXCEPT PORTIONS)

**SAVE AND EXCEPT:** Description of a 0.155 acre portion of Lot 300, Block 14, of MOUNTAIN VIEW ADDITION, an Addition to the City of El Paso, El Paso County, Texas, according to the Plat or Map thereof recorded in Volume 2, Page 39, Official Records of El Paso County, Texas:

Beginning at the Southwestern most corner of Lot 300, Block 14; Thence North 88°49' East 162.68 feet along the South boundary line of Lot 300;

Thence, North 29°26' East 36.12 feet along the line between said Lot 300 and Lot 301; Thence, North 83°20' West 151.81 feet across Lot 300 to a point in the Western Boundary line of Lot 300, which line is the Easterly right-of-way line of Dyer Street (U.S. Highway 54);

Thence, South 29°26' West 60.22 feet along line said above to the Southwestern most corner of said Lot 300, and the Place of Beginning, and containing 6744.07 square feet (0.155 acres) of land, more or less.

**SAVE AND EXCEPT:** Description of a 0.00197 acre portion of Lot 300, Block 14, of MOUNTAIN VIEW ADDITION, an Addition to the City of El Paso, El Paso County, Texas, according to the Plat or Map thereof recorded in Volume 2, Page 39, Official Records of El Paso County, Texas:

Beginning at the Southwest corner of said Block 14, Lot 300, Thence, North 29°26'00" East along the common boundary of U.S. Highway 54, and West boundary of said Lot 300, a distance of 191.97 feet to establish the True Point of Beginning;

Thence, North 29°26'00" East, along said common boundary to the Northwest corner of said Lot 300, a distance of 20.00 feet; Thence, South 60°34'00" East along common boundary of said Lot 300, and West boundary of Tetons Drive, a distance of 20.00 feet;

Thence along the arc of a curve to the left a distance of 31.41 feet, said curve having a central angle of 90°00'00", a radius of 20.00 feet, and a chord bearing South 74°26'00" West a distance of 28.28 feet to the True Point of Beginning; said parcel containing 0.00197 acres of land, more or less.

**SAVE AND EXCEPT:** Description of a 0.3913 acre portion of Lot 300, Block 14, of MOUNTAIN VIEW ADDITION, an Addition to the City of El Paso, El Paso County, Texas, according to the Plat or Map thereof recorded in Volume 2, Page 39, Official Records of El Paso County, Texas:

Commencing for reference at a 1/2" rebar with cap stamped "2027" found at the southwest corner of Lot 301 of said Block 14, said rebar also marking the northwest corner of Lot 1, Block 1, Britton Davis Addition (recorded in book 6, page 2, El Paso County Plat records); Thence, with the

westerly lot line of said Lot 301, North 29°26'00" East a distance of 36.12' to a 1/2" rebar with cap stamped "2027" found at the southeast corner of this parcel, and being the "Point Of Beginning";

Thence, with the northerly boundary line of that parcel recorded in Clerk's File #20130014284 (and previously in book 830, page 657), North 83°20'00" West a distance of 151.83' to a 1/2" rebar found at the southwest corner of this parcel and lying on the easterly ROW line of Dyer Street (100' wide);

Thence, with said easterly ROW line of Dyer Street, North 29°26'00" East a distance of 131.75' to a "V" chiseled on concrete at the most southerly corner of that parcel recorded in book 461, page 78, El Paso County Deed Records;

Thence, with the southeasterly boundary line of said parcel recorded in book 461, page 78, along the arc of a curve to the right a distance of 31.42', having a central angle of 90°00'00", a radius of 20.00' and a chord that bears North 83°44'21" West a distance of 28.28' to a 5/8" rebar with cap stamped "5372" set on the southerly ROW line of Tetons Drive (70' wide);

Thence, with said southerly ROW line of Tetons Drive, South 60°34'03" East a distance of 120.00' to a 1/2" rebar found at the northeasterly corner of said Lot 300;

Thence, with the common lot line of said Lots 300 and 301, South 29°26'00" West a distance of 93.00' to the "Point Of Beginning" and containing 17,047 sq. ft. or 0.3913 acres of land, more or less.